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October 28, 2022

Kelly Brookins
Regional Administrator
200 West Adams Street
Chicago, IL 60606-5263

RE: Federal Transit Administration (FTA) Fiscal Year 2022 Triennial Review –
Final Report Response

Dear Ms. Brookins:

Enclosed please find the response to the final report of FTA's Triennial Review of SORTA, as included in your letter dated August 1, 2022. Our response details the corrective actions taken to address the deficiencies found in four of the areas reviewed: Area 3. Technical Capacity-Award Management, Area 7. Satisfactory Continuing Control, Area 8. Maintenance, and Area 9. Procurement. All deficiencies have been addressed and corrective actions taken as of the date of this response.

We appreciate Region V's continued assistance and support with the corrective action implementation. If you have any questions or require further information, please contact Mary Huller, Sr Manager of Grants Administration & Development, at (513) 632-7533 or by email at mhuller@go-metro.com.

Respectfully,

Darryl Haley
Chief Executive Officer/General Manager

Enclosure

cc:
Mr. Stewart McKenzie, FTA
Mr. Gerald Murphy, FTA
Mr. Tom Buffkin, Interactive Elements Inc.

SORTA FY 2022 Triennial Review

Corrective Actions Submittal to FTA

Below are the FY Triennial Review Deficiencies by area, the corrective action as stated in the FTA Final Report dated October 1, 2022, and SORTA's response to the Corrective Actions.

Area 3. TECHNICAL CAPACITY-AWARD MANAGEMENT

Deficiency: Inactive award/untimely closeout.

Deficiency Description: The recipient is deficient if it does not initiate award closeout in a timely fashion or has open awards that should be closed. At the time of the Triennial Review, SORTA had at least two open grant awards that were completely or almost completely disbursed: OH-2018-038, OH-2020-057. These should be closed. SORTA indicated that they have had technical difficulties (with TrAMS) in closing out some of these awards. SORTA needs to make a concerted effort to close-out these inactive awards.

Corrective Action(s) and Schedule: By October 31, 2022, SORTA must work with the FTA regional office to deobligate funds and close awards if funds remain in inactive awards or if projects are indefinitely delayed.

Status of Corrective Actions:

Closeout of Open Grant Awards

Remaining funding on both grants has been expended or deobligated, and the grants have been closed in TrAMS.

Area 7. SATISFACTORY CONTINUING CONTROL

Deficiency: Lacking plans for idle facilities.

Deficiency Description: The recipient is deficient if it has idle facilities and does not have plans or has not taken steps to use, lease, or dispose of the facilities. SORTA has FTA funded idle property: the Oasis Rail Corridor.

Corrective Action(s) and Schedule: October 31, 2022, SORTA must provide a plan for idle property disposal including an appraisal of the parcel(s). SORTA shall sell the property for no less than the appraisal value.

Status of Corrective Actions:

Plans for Disposal of SORTA's Rail ROW:

SORTA is making efforts to dispose of the ROW corridor property following the 2021 recommendation of a Consultant hired for the disposition of the ROW. An RFP for the appraisal of the property was issued with proposals due in November of 2021. No proposals were received. SORTA will issue a new RFP by December 31, 2022. A plan for property disposal is included in Attachment 1 – Idle Property Disposal Plan for Rail ROW.

Area 8. MAINTENANCE

Deficiency: Late vehicle/vessel preventive maintenance.

Deficiency Description: The recipient is deficient if examination and analysis of vehicle/vessel preventive maintenance records show that the recipient is not performing on time preventive maintenance in accordance with its program at least 80 percent of the time. For its paratransit fleet, the three examples examined showed that all preventive maintenance inspections were carried out more than 10% early.

FTA Corrective Action and Schedule:

By October 31, 2022, SORTA must submit to FTA regional office:

- Procedures for completing preventative maintenance inspections on time.
- A monthly report signed by the chief executive officer or other senior management designee on preventative maintenance results until the data demonstrate the recipient has conducted 80 percent of its preventive maintenance on time for three consecutive months. For each vehicle/vessel that received a preventive maintenance inspection during the month, the recipient must include with submittal to the FTA regional office:
 - A report that lists the vehicle/vessel number, date of the inspection, mileage of the current inspection, mileage of the previous inspection, and the mileage interval between the two inspections for each vehicle/vessel that received a preventive maintenance inspection during the month. List the percentage of the inspection performed on time.
 - Back up documentation for each vehicle/vessel (e.g., copy of work order, printout from the maintenance management system) documenting the date and mileage of the inspection.

STATUS of Corrective Actions:

SORTA has taken the following actions to ensure that preventative maintenance on the Access paratransit vehicles is not performed earlier than FTA guidelines require:

Modified Access Paratransit Maintenance:

Attachment 2 – On Time Preventative Maintenance Policy and Procedures lists procedures that have been created for completing preventative maintenance inspections on time. These have been added to SORTA's Master Fleet Policy

and Procedures Manual.

Related, SORTA's Maintenance Department has modified the preventative maintenance work order tracking system so that it will not generate work orders for paratransit vehicle(s) until the vehicle(s) are within 500 miles of the service scheduled 5000-mile interval. A report has been created to track this service to ensure SORTA's vehicle preventative maintenance performance complies with FTA guidelines.

Monthly Reporting to FTA:

- Attachment 3 - Access C-Inspection Report – Signed contains Access Paratransit C-Inspection Signed Summary Reports for three consecutive months. These reports were signed by the Director of Fleet and Facilities, Jeff Mundstock. They demonstrate that SORTA has conducted 80 percent of its preventative maintenance on time for the three consecutive months of July, August, and September 2022.
- For each paratransit vehicle that received a preventive maintenance inspection during the month, included within the Attached signed Summary Report is:
 - the vehicle number, date of the inspection, mileage of the current inspection, mileage of the previous inspection, and the mileage interval between the two inspections for each vehicle that received a preventive maintenance inspection during the month, and the percentage of the inspection performed on time.
 - Back up documentation for each vehicle/vessel (e.g., copy of work order, printout from the maintenance management system) documenting the date and mileage of the inspection.

Area 9. PROCUREMENT

Deficiency #1: Lobbying certifications not included in procurement solicitations or signed by bidders.

Deficiency Description: The recipient is deficient if it has not included the lobbying certification in its procurement solicitations that exceed \$100,000 or if it has not obtained the proper certifications from contractors awarded contracts that exceed \$100,000. SORTA did not produce evidence that they had collected a lobbying certification for the Bridgestone Tire Lease contract.

Corrective Action(s) and Schedule: By October 31, 2022, SORTA must submit to the FTA regional office procedures for obtaining signed lobbying certifications. SORTA must submit to the FTA regional office a copy of the signed lobbying certification with the next applicable procurement.

Status of Corrective Action:

Signed Lobbying Certifications

A signed lobbying certificate for the Prus Construction procurement is included in Attachment 4 - Sept 2022 Procurement Signed Lobbying Certificate.

Procurement Procedures for Lobbying Certification Requirements:

SORTA's procurement procedures now state the need for the signed Lobbying Certification in Attachment 5, page 33.

Deficiency #2: Pre-award and/or post-delivery certification lacking.

Deficiency Description: The recipient is deficient if its pre-award and/or post-delivery certifications for applicable rolling stock procurements are not complete or in compliance with 49 CFR Part 663. For its December 2021 Gillig bus purchase, SORTA does have pre-award and post-delivery certifications for the purchaser's requirements, but it does not have certifications for Pre-award Buy America, Post-delivery Buy America, and certification that the buses procured are FMVSS compliant. The recipient must complete, at the post-delivery stage, a certification that the recipient has received from the vehicle manufacturer at both the pre-award and post-delivery stages a copy of the manufacturer's self-certification information that the vehicle complies with the FMVSS issued by the National Highway Traffic Safety Administration (49 CFR Part 571).

Corrective Action(s) and Schedule: By October 31, 2022, SORTA must submit to the FTA regional office the certifications for the vehicle procurement reviewed. SORTA must submit to the FTA regional office procedures for completing the applicable pre-award and post-delivery audits certifications for future revenue rolling stock procurements.

Status of Corrective Actions:

Certifications for Vehicle Procurement Reviewed:

The certifications for the Gillig vehicle procurement reviewed, specifically certifications for Pre-award Buy America, Post-delivery Buy America, and certification that the buses procured are FMVSS compliant, are in Attachment 6 - Gillig Pre-Award Buy America and Post-Delivery Buy America Signed Audits including FMVSS

Procedures for Completing the Pre- Award and Post-Delivery Audits:

Procedures for completing the applicable pre-award and post-delivery are included in Attachment 5 - Procurement Policies & Procedures, page 31.